

25STCV21544 25STCV21544

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-06-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C06%2F24%2F2026

Source SHA-256: 1166ed329c62af2cf711ff7c579b630ad90dc1371b612bde3f506aa0829c2be8

Case Number: 25STCV21544 Hearing Date: June 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

24, 2026 TRIAL DATE: Not set

CASE: Keep America Safe

and Beautiful, in the public interest v. Chain Drug Marketing Association, Inc.
et al.

CASE NO.: 25STCV21544

MOTION FOR ENTRY OF STIPULATED CONSENT
JUDGMENT

MOVING PARTY: Plaintiff

Keep America Safe and Beautiful

RESPONDING PARTY: No opposition

I. BACKGROUND

This is a

Proposition 65 case. On July 22, 2025, Plaintiff,
Keep America Safe and Beautiful, filed a complaint against Defendants, Chain
Drug Marketing Association, Inc. ("CDMA") and Amazon.com Services, LLC for
Defendants' alleged failure to comply with Proposition 65 with respect to CDMA's

dietary fiber supplement product. Plaintiff seeks injunctive relief and civil penalties.

On April 7, 2026, Plaintiff filed a motion for entry of stipulated consent judgment.

On May 7, 2026, Plaintiff an amended motion for entry of stipulated consent judgment.

The motion is unopposed.

II. LEGAL STANDARD

The Safe Drinking Water and Toxic Enforcement Act of 1986, colloquially known as Proposition 65, was passed as a ballot initiative by the California voters and was designed to prevent the contamination of drinking water with, and generally protect the public from unknowing exposure to, harmful chemicals. (See generally 12 Witkin, Summary of California Law 10th (2005) Real Property, § 894, p. 1075.) Health & Safety Code section 25249.7 governs the enforcement of Proposition 65. Proposition 65 has both public and private enforcement mechanisms. (See Health & Saf. Code, § 25249.7(c), (d).) Violations are punishable by injunction (Health & Saf. Code § 24259.7(a)) and civil penalty (Health & Saf. Code § 24259.7(b)). In the case of private enforcement actions, parties may also recover attorney's fees, pursuant to the provisions in Code of Civil Procedure section 1021.5, governing actions concerning important rights affecting the public interest.

Health &

Health & Safety Code section 24259.7(f) governs the role of the court in approving settlements and consent judgments for private actions to enforce Proposition 65. Section 24259.7(f)(4) provides, in relevant part, that:

Health &

If there is a settlement of an action brought by a person in the public interest under subdivision (d), the plaintiff shall submit the

settlement, other than a voluntary dismissal in which no consideration is received from the defendant, to the court for approval upon noticed motion, and the court may approve the settlement only if the court makes all of the following findings:¿

¿

(a) The warning that is required by the settlement complies with this chapter.¿

(b) The award of attorney's fees is reasonable under California law.¿

(c) The penalty amount is reasonable based on the criteria set forth in paragraph (2) of subdivision (b).¿

¿

"To stamp a consent agreement with the judicial imprimatur, the court must determine the proposed settlement is just In the context of Proposition 65 litigation, necessarily brought to vindicate the public interest, the trial court also must ensure that its judgment serves the public interest."¿ (Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America (2006) 141 Cal.App.4th 46, 61.)¿

III. DISCUSSION

Plaintiff moves for a court order approving the stipulated consent judgment pursuant to Health & Safety Code section 25249.7(f).¿

1. Compliancy of Warning¿

¿

Health & Safety Code section 25249.6 states, in relevant part: "No person in the course of doing business shall knowingly and intentionally expose any individual to a chemical known to the state to cause cancer or reproductive toxicity without first giving clear and reasonable warning to such individual, except as provided in Section 25249.10."¿ (Health

& Saf. Code, § 25249.6.)² “Health and Safety Code section 25249.6 (the central warning provision) requires that there be no ‘knowing and intentional’ exposure ‘without first giving clear and reasonable warning.’”³ (Consumer Defense Group v. Rental Housing Industry Members (2006) 137 Cal.App.4th 1185, 1214.)⁴ In order for a warning to be clear and reasonable, the manner of transmission must be reasonable, the message employed must be sufficiently clear to communicate the warning.⁵ (Environmental Law Foundation v. Wykle Research, Inc. (2005) 134 Cal.App.4th 60, 67 fn. 6.)⁶⁷

Here, the parties’ settlement provides that, beginning on the Compliance Date, CDMA shall be permanently enjoined from manufacturing for sale in the State of California, “Distributing into the State of California,” or directly selling in the State of California, any Covered Product that expose a person to a “Daily Lead Exposure Level” of more than 0.5 micrograms of lead per day, unless it meets the warning requirements.⁸ (Proposed Consent Judgment, § 3.1.)⁹ The warning also directs the consumer to www.P65Warnings.ca.gov/food for more information.¹⁰ (Proposed Consent Judgment, § 3.2.)¹¹ With respect to how the warning is to be printed, the word “warning” is to be capitalized and in bold, set off from other surrounding information, and if sold by Himalaya over the internet, the warning shall appear on the checkout page, or prominently displayed to the purchaser prior to completing the purchase, in full text or through a clearly marked hyperlink using the word “WARNING” in all capital and bold letters when a California delivery address is indicated for any purchase of any Covered Product.¹² (Proposed Consent Judgment, § 3.2.)¹³ The parties’ settlement also ensures that the warning will reach consumers as each product will carry the warning directly on each container or wrapper for each Covered Product.¹⁴ (Proposed Consent Judgment, § 3.2.) The court finds the warning by the settlement is clear and reasonable and complies with the Health and Safety Code.¹⁵

2. Reasonableness of Attorney’s Fees¹⁶

¹⁷

The fees setting inquiry in California ordinarily begins with the “lodestar” method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.¹⁸ A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.¹⁹ The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.²⁰ (Serrano v. Priest

(1977) 20 Cal.3d 25, 49.)² Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary.³ (Id. at p. 48, n.23.)⁴ After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure.⁵ (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-96.)⁶

²

Here, the settlement provides for attorney's fees and costs in an amount of \$44,000.00.⁷ (Proposed Consent Judgment, § 5.)⁸ Counsel sets forth details as to what actions were undertaken in investigating, litigating, and settling this action.⁹ (Krikorian Decl., ¶ 6.)¹⁰ Counsel states that he bills at \$500 per hour and co-counsel bills at \$550 per hour. (Id. ¶¶ 1, 4, 5.)¹¹ Based on the foregoing, the court finds that the amount of attorney's fees and costs provided to Plaintiff in the settlement is reasonable.¹²

3. Reasonableness of Civil Penalty¹³

Health & Safety Code section 25249.7(b)(1) states, in relevant part: "A person who has violated Section 25249.5 or 25249.6 is liable for a civil penalty not to exceed two thousand five hundred dollars (\$2,500) per day for each violation in addition to any other penalty established by law."¹⁴ Section 25249.7(b)(2) states: "In assessing the amount of a civil penalty for a violation of this chapter, the court shall consider all of the following: (A)¹⁵ The nature and extent of the violation. (B)¹⁶ The number of, and severity of, the violations. (C)¹⁷ The economic effect of the penalty on the violator. (D)¹⁸ Whether the violator took good faith measures to comply with this chapter and the time these measures were taken. (E)¹⁹ The willfulness of the violator's misconduct. (F)²⁰ The deterrent effect that the imposition of the penalty would have on both the violator and the regulated community as a whole. (G)²¹ Any other factor that justice may require."²²

²³

Here, the settlement provides for \$6,000.00 in civil penalties, with 75% to be remitted to the State of California and the remaining 25% to be remitted to Plaintiff. (Proposed

Consent Judgment, § 4.) The court finds \$6,000.00 in civil penalties is reasonable.

4. Public Benefit

Pursuant to 11 Cal. Code Regs. § 3201(b)(1), “a settlement that provides for the giving of a clear and reasonable warning, where there had been no warning provided prior to the sixty-day notice, for an exposure that appears to require a warning, is presumed to confer a significant benefit on the public.”

Here, the consent judgment does exactly that as it prompts CDMA to provide a clear and reasonable warning on products that did not include such a warning previously. The proposed consent judgment thus serves the public interest in that it provides a warning for lead exposure for all covered products.

IV. CONCLUSION

Based on the foregoing, the unopposed motion for entry of stipulated consent judgment is GRANTED.

Plaintiff to
give notice.

Dated: June 24, 2026

Brock T. Hammond

Judge of the Superior Court